

## 25STCV07971 25STCV07971

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-06-23

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Case Number: 25STCV07971 Hearing Date: June 23, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:08 PM on June 22, 2026.

Notice

of intent to appear is REQUIRED pursuant to California Rule of Court

3.1308(a)(1). The Court does not desire

oral argument on the motion addressed herein.

As

required by Rule 3.1308(a)(1), any party seeking oral argument must notify ALL

OTHER PARTIES and the staff of Department 734 by 4:00 p.m. on June 22, 2026.

Notice to Department 734 should be sent by

email to [email protected], with opposing parties copied on the email. The high volume of telephone calls to

Department 734 may delay the Court's receipt of notice, so telephonic notice to

213-830-0776 should be reserved for situations where parties are unable to give

notice by email.

Per

Rule of Court 3.1308, the Court may not entertain oral argument if notice of intention to appear is not given.

This

is a Lemon Law action based on an alleged Engine Defect.

Defendant

General Motors, LLC moves to compel Plaintiff's compliance with Code Civ. Proc.

§ 871.26(c)(1)(deposition) and requests the imposition of sanctions.

#### TENTATIVE RULING

Defendant General Motors LLC's motion to compel Plaintiff's

deposition pursuant to Code Civ. Proc. § 871.26(c)(1) and request for sanctions

is DENIED.

#### ANALYSIS

##### Motion To Compel Deposition

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses

the points which the Court deems to be material to the disposition of this motion.

Defendant

General Motors, LLC moves to compel Plaintiff's deposition pursuant to Code Civ.

Proc. § 871.26(c)(1), which provides:

(c) Within 120

days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents:

(1) The plaintiff.

(Code Civ. Proc. § 871.26(c)(1).)

Defendant

moves for monetary sanctions in the sum of \$1,500 pursuant to Code Civ. Proc., § 871.26(j)(2).

On

July 18, 2025, Defendant filed a demurrer to the Complaint. As such, Defendant had

the right to conduct Plaintiff's deposition by November 17, 2025. Of note, Defendant

had initially noticed Plaintiff's deposition for August 5, 2025. (Declaration of

Nathan Rodriguez, ¶ 5; Exh. B.) On August 5, 2025, Plaintiff's counsel objected to the deposition

date as having been unilaterally set and indicated meet and confer efforts would

occur to schedule a mutually convenient date. (Id., ¶ 6; Exh. C.)

On December

22, 2025, counsel for the Plaintiff offered January 28, 2026 as an available date

for Plaintiff's deposition. GM replied and confirmed the proposed date and time

for deposition. (Rodriguez Decl., ¶ 7; Exh. D.) Notably, Defendant does not present

efforts to take the deposition prior to November 17, 2025, instead waiting until

December 22, 2025 for Plaintiff's counsel to offer January 28, 2026 as a deposition

date. (Id.)

Indeed, while

Defendant's counsel does not mention this, Plaintiff's counsel states as follows:

5. On or about

November 7, 2025, Plaintiff sent an email with a deposition offer date of December

29, 2026 [sic]. On or about November 20, 2026, Defendant responded by rejecting

the offered date (attached hereto as [sic] Exhibit 3).

(Declaration of Jana Perks, ¶ 5 [bold emphasis

added].)

Thus, Defendant rejected the December

29, 2025 date on November 20, 2025—which was after the November 17, 2025 deadline

for Defendant to take Plaintiff's deposition pursuant to Code Civ. Proc. § 871.26(c)(1).

Defendant did not file and serve the instant motion until February 4, 2026.

Under the foregoing circumstances, the

Court finds that Defendant waived the right to compel Plaintiff to sit for his deposition

pursuant to Code Civ. Proc. § 871.26(c)(1) by failing to diligently attempt to procure

a deposition date before November 17, 2025. Defendant may resort to the general

civil procedure rules governing depositions to obtain Plaintiff's deposition.

Defendant General Motors LLC's motion

to compel Plaintiff's deposition pursuant to Code Civ. Proc. § 871.26(c)(1) and

request for sanctions is DENIED.